



6332 Flank Drive
Harrisburg, PA 17112-2700
Ph. (717) 541-1633 * Fax (717) 541-8014
www.midatlanticmachinery.com

September 23, 2025

Michael Cardamone
Hanwha Philly Shipyard
2100 Kitty Hawk Ave
Philadelphia, PA 19112-1808
(215) 875-2600;2759
(215) 896-5953
michael.cardamone@phillyshipyard.com

Quote Number: 16836-092225-CB
RE: Baykal / Hydraulic Press Brake

Dear Michael,

Thank you for the opportunity to provide you with this sales quote. We appreciate your interest in Mid Atlantic Machinery, Inc. and look forward to supporting your metal fabrication needs.

Enclosed, you'll find the pricing and specifications for the recommended equipment. Should you be interested in financing, a proposal is provided following the quote. If you are interested in additional finance options, please reach out to our office at (877) 888-MAMG. Please also review the Terms and Conditions of Sale for key details regarding your purchase.

If you have any questions, need modifications, or would like to explore additional options, please don't hesitate to reach out. I'm happy to assist in any way to ensure you have the best solution for your business.

At Mid Atlantic Machinery, we're committed to providing high-quality equipment and exceptional service. We look forward to a continuing partnership with your company and helping you achieve your production goals.

Sincerely,

A handwritten signature in black ink, appearing to read "Chris Barsanti".

Chris Barsanti
CB/an

September 23, 2025

Proposal No. 16836-092225-CB

Baykal Hydraulic Press Brake
Model APHS 4300 x 1000 (1,100-ton x 13'5")



NOTE: Machine shown is 1,100 tons x 26'

Note: If bed height above floor is too tall, machine can be lowered into the floor. Please discuss this with your salesperson.

Specification:	Inch	Metric
Bending capacity (tons)	1,100	1000
Overall bed length	13'5"	4300 mm
Distance between housings	10'2"	3100 mm
Open Height above bed	29.5"	750 mm
Stroke length	19.7"	500 mm
Closed height	9.8"	250 mm
Operating speeds		
Advanced:	165"/min.	70 mm/sec.
Pressing (variable):	17"/min.	7 mm/sec.
Return:	130"/min.	55 mm/sec.
Throat depth	29.5"	750 mm
Bed height above floor	43"	1,100 mm
Below floor frame / bed	0"	0 mm
Motor	75 HP	55 KW
Assembled dimensions		
Height from floor:	162"	4124 mm
Left to right:	288"	7316 mm
front to back:	128"	3255 mm
Weight:	180,780 lbs.	82,000 kg.

FAB-LINE Machinery LLC is proud to offer the Baykal model APHS CNC servo press brake. This hydraulic machine is offered in 10 various standard tonnages ranging from 44 to 660 tons and lengths from 4 to 20 feet to meet the majority of forming requirements. Along with these standard capacity machines, Baykal will engineer any special requirement or capacity. These specifications can include tonnage to 6,600-ton, bed length to 40', extended open height and stroke or extended throat depth. Along with special single bed machines, Fab Line and Baykal also offer machines assembled in tandem, triplet, or a quad arrangement.

The APHS is manufactured by Baykal, an ISO 9001 manufacturer in an ultra-modern state of the art manufacturing facility. These machines go through an extensive manufacturing process, using the latest technology. In addition, Baykal uses the highest quality material available, the frame members processed out of certified ST44-2 steel, roll straightened, and stress relieved prior to any welding. This assures our components are of the highest quality and that machined tolerances remain stable throughout the life of the machine. All the Baykal machines are machined in one handling on large bridge style CNC mills to assure exact tolerances.

STANDARD FEATURES

- ✓ Welded, monoblock steel frame for minimum deflection under load
- ✓ Y1 / Y2 Dual cylinder down stroking machine with +/- .0004" repeatability
- ✓ One-piece forged cylinders precision machined and honed for high accuracy
- ✓ Cylinders are keyed interlocked and bolted to side frame for zero backlash
- ✓ Bed referenced, precision linear GVI Measure scales assure accurate ram position measurement with repeatability of +/- .0004."
- ✓ Cartridge valves are mounted in a single, steel manifold block to reduce heat and wear. The simplicity and reduction of pipe connections minimize leaks.
- ✓ Full flow, full pressure in-line filter attached to pump ensures optimum oil cleanliness and trouble-free operation of all hydraulic components
- ✓ Electrically interlocked, swing away throat guards with space for mounting most brands of safety light guards (see options for light curtain selections)
- ✓ Electrically interlocked, rear sliding door prevents access to back area
- ✓ This machine is provided with American style heavy duty punch holders.
- ✓ Wired electrical box with ventilation
- ✓ Standard controller is the Delem 66T, touchscreen, 2D graphic, CNC controller with easy fill in the blank programming.
- ✓ 39-inch AC Servo driven X and R axis back gauge with four heavy duty finger assemblies
- ✓ Baykal CNC crowning system
- ✓ Y1, Y2, X and R for a 4 Axis system
- ✓ Four front support arms, mounted on a linear guide, running the entire bed length. A hand wheel driven acme screw running thru a brass nut, provides lateral adjustment. Flip stops (2) are provided for front gauging.
- ✓ Dual palm buttons mounted on stand with dual foot pedals & "E" stop

CNC CONTROL SYSTEM

The Delem 66T CNC Control system is a pendant mounted servo controller that is user friendly and easily visible with its large 17" display. The fill in the blank format makes even the most inexperienced operator proficient in a matter of hours. This control is a multi-axis (up to 8 axis), 2D color display with graphical features. The features of the Delem 66T make it one of the most technologically advanced and user-friendly controls available in the marketplace.



Some key features are as follows:

- ✓ Being able to draw the profile of the product on the screen.
- ✓ Automatic Bend sequence
- ✓ Operator Warning system.
- ✓ Teaching ability for all axes
- ✓ Structured program storage (sub directories)
- ✓ High memory capacity for program steps and tooling data
- ✓ Multiple languages for shops with other than English language
- ✓ Memory storage on a USB flash disk
- ✓ All axes of the machine can be controlled (Y1, Y2, X1, X2, R1, R2, Z1, Z2, and CNC crowning). Some of these are options on the brake.
- ✓ Programming of direct angle or absolute position
- ✓ Bump Radius forming
- ✓ Manual operation of Y and X axes
- ✓ Integrated diagnostic software.
- ✓ Customizable alarm messages
- ✓ Automatic tonnage calculation and pressure regulation
- ✓ DIN automatic bend allowance calculation
- ✓ Extra page for specifying tooling, material properties, and stock count.
- ✓ Push button page for gaining access to quick and easy programming.
- ✓ Safety PLC communication
- ✓ Calculation of Bending and crowning tonnage
- ✓ Pinch retract feature to allow gauge bar to move backward allowing the Operator time to manipulate the work piece prior to the gauge bar advancing forward.
- ✓ Customizable alarm messages
- ✓ USB port for program storage and software communication
- ✓ 1 serial RS232 communication port

BACK GAUGE SYSTEM

Manufactured out of heavy section, tubular steel, the APHS series of machines come equipped with an exceptional quality, X and R axis back gauge. The dual, back gauge drives are mounted directly to the side frames for rigid stability and are driven by high torque, AC servo motors. A geared belt provides a smooth, quiet transmission of power to each of the (2) two precision ball screws. Four heavy-duty flip finger assemblies ride smoothly along the gauge bar via a precision, linear bearing. Vertical, up/down (R axis) finger movement is adjusted automatically via the CNC controller. Manual micro adjustment (in/out.) of each finger is also provided.

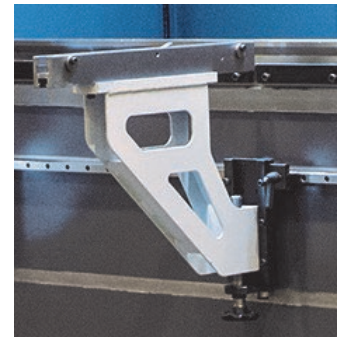
<u>Specification as follows:</u>	X Axis (CNC)	R Axis (CNC)
Range	39.3 inches	9.8 inches
Speed	826"/min	567"/min.
Positioning accuracy	+/- .001"	+/- .002"

RAM OF THE MACHINE

The ram of the APHS is equipped with an American heavy duty upper tool holder.

BED OF THE MACHINE

The bed of the APHS is equipped with four front support arms, on linear rails. This provides the operator with support during the bending operation. The bed is also equipped with a Baykal mechanical crowning device with center slot and set screws.



TOOLING

Specific tooling needs can be addressed with your salesman. Please see pricing page for standard tooling package.

HYDRAULICS

The large capacity hydraulic tank is made from a 5/16" thick plate (8mm). Piloted, high-capacity pre-fill valves are mounted directly to the top of each piston. When actuated, oil is drawn out of the oil tank by the weight of the ram pulling down on the piston rods. This increases speed, reduces electrical consumption, and minimizes the generation of heat. Cartridge valves mounted in a single steel manifold block also

reduce heat and maintenance issues. A sensor that monitors flow pressure in the cartridge type oil filter notifies the operator when it is time to replace. This hydraulic design is for ease of service, reliability, and reducing downtime. The cylinder construction consists of Shamban style seals for increased reliability, and it is important to note that all cylinders and pistons are manufactured in house to assure the most stringent tolerances.

SAFETY

Baykal press brakes conform to all current ANSI national codes. They are accredited with ISO 9001 certification and all products are CE certified. Regardless, it is the ultimate responsibility of the employer to assess the safety needs and requirements of his or her own equipment as it relates to press usage and local safety codes. (Consult your salesman for light guarding options). All APHS machines are fully equipped with a double footswitch console. This includes a footswitch, two hand control, and an emergency stop button. The machine comes equipped with electrically interlocked side and rear guards for optimum protection as well as a front and rear work light for the operator's convenience.

ELECTRICAL

The electrical box is compact and has ventilation for prevention of heat build up. All servo amplifiers, Pilz PLC, Motor controls, Fuses, Main electrical disconnect, etc., are in this spacious enclosure. The machine can be wired for 460/3/60 or 230/3/60.

PRICING

Baykal Model 4300 x 1000 APTS Press Brake	
Base Price	\$890,600
Bending capacity (tons)	1,100
Bed length	13'5"
Standard features: Installation and start-up training One-year parts and labor warranty X and R axis back gauge, with four back gauge fingers Delem 66T Controller CNC crowning system Safety interlocked side and rear doors Four front support arms on linear guides Options to consider:	
Baykal Model APTS 41440 Press Brake	
AKAS Operator safety system	11,700
Tooling can be quoted upon request	T.B.A.

Please discuss tool heights with your salesman to verify travel of the R axis. Zero point on the R axis can be adjusted at time of order.

*Prices are FOB Norfolk VA unless otherwise stated, excluding any state or local taxes. All pricing includes the current 15% tariff. Should this increase or decrease at time of shipment, your final invoice will be adjusted accordingly.

*FAB-LINE Machinery, LLC Warranty is one (1) year parts and labor excluding any consumables (filters, tooling, holders, etc.)

*All electrical, rigging, pneumatics, if necessary, hydraulic oil, and any tooling is the responsibility of the customer

*Customers are responsible for providing the proper flooring for all equipment purchased.

*FAB-LINE will provide installation labor. The customer agrees to provide any labor help and use of any materials, fork trucks, cranes, or other items that may be needed to complete installation. **The Fab Line Service Dept. will provide a pre-installation check list shortly after the time of order. It is the responsibility of the customer to have the items listed on the checklist completed prior to the technician's arrival. The installation and training timeframe is not to exceed 4 days.**

Additional training days can be offered as a paid visit.

*Manuals for the machine will be provided with the machine paper format. All these materials are to be used by the customer for operation, maintenance, parts ordering, and programming. The materials are not to be copied and provided to any third party due to the confidential information it contains.



DELIVERY: To Be Determined at Time of Order
F.O.B.: Norfolk, VA
TERMS: 30% Deposit with Order, 60% Prior to Shipment, Net 20 Days
(With Approved Credit)
VALIDITY: 14 Days

Price for machine plus options (please circle options) \$ _____
(Prepay & add freight to invoice)

Purchase order number (if applicable) _____

Please specify machine voltage _____

AP Contact Person _____

AP Contact Email Address _____

Accepted By: Michael Cardamone

Date

Financing options

For your equipment purchase

- Convenient one-page application up to \$750,000
- Flexible payment terms to fit your cash flow
- Funding for down payments and progress payments preserve your capital
- Electronic documents available

Company: Hanwha Philly Shipyard

Customer Name: Michael Cardamone

Equipment Description: Baykal

Financed Amount: \$ 890,600.00

Term	3 Months Deferred	Finance Option	Fair Market Value
36 months	\$ 30,076.36	\$ 27,491.22	\$ 20,327.68
48 months	\$ 22,759.37	\$ 21,273.67	\$ 17,093.55
60 months	\$ 18,552.36	\$ 17,570.38	\$ 15,370.51
72 months	\$ 15,837.99	\$ 15,129.25	\$ 14,188.68
84 months	\$ 13,948.49	\$ 13,405.13	\$ 13,150.87

**Please call for FMV payments on software, automation, material handling, measuring, or finishing equipment.

For more information, contact:

Mark Aimone, VP

908.284.0201

mark.aimone@usbank.com

Sara Lipetzky, ISR

507.532.8436

sara.lipetzky@usbank.com

Offer valid through 9/30/2025.

Based on the amount borrowed, a one-time origination fee of \$295 to \$750.00 may apply.

usbank.com/mvs

Credit products are subject to normal credit approval. Other conditions and fees may apply. Interest rates subject to change at any time without notice. Lease and loan terms are subject to change at any time without notice. Financing maximums, terms, and deferral structures are determined by borrower qualifications and use of funds. For any deferred payment, interest accrues and is amortized over the remaining balance and term. Applicable Sales/Use tax are not included in the monthly payments illustrated and will be added to the monthly payment. U.S. Bank Equipment Finance is not offering legal, tax or financial advice. You should consult with your tax advisor for the specific impact to your business. U.S. Bank does not endorse or guarantee the products, service or performance of third parties ©2025 U.S. Bank. U.S. Bank Equipment Finance, EP-MN-MARS, 1310 Madrid Street, Marshall, MN 56258. 807006 CAT-61665566 (4/25).

Mid Atlantic Machinery, Inc.

TERMS AND CONDITIONS GOVERNING ALL QUOTATIONS AND ORDERS:

QUOTATIONS AND ORDER ACCEPTANCES:

(A) This quotation, or proposal, from Mid-Atlantic Machinery, Inc. (hereinafter referred to as "MAM") **does not constitute an offer but is an invitation to place an order. The terms of this proposal shall be accepted by the buyer ("Buyer") upon Buyer's issuance of a purchase order and/or down payment.** All orders are subject to written acceptance by MAM. If an order based upon this proposal is accepted by MAM, it is agreed that the order shall be subject to the terms and conditions (the "Terms") set forth hereinbelow. It is also understood that if the order placed is pursuant to a government contract, it shall also be subject to any conditions required by laws of the United States and mandatory terms of such government contract as are disclosed to MAM. No contract term or condition shall be amended, deleted or added without the express written consent of MAM, and MAM hereby gives notice of objection to any terms set forth in any other writing which are in addition to or different from the terms set forth in this quotation.

(B) Orders based on our quotations are continuous, outstanding, and made by a duly authorized party.

(C) Orders based on our quotation are subject to acceptance upon sale confirmation and/or acceptance by manufacturer(s) or supplier(s).

(D) This quotation and all drawings, specifications, materials, patterns and special purpose manufacturing aids which are supplied to you by MAM shall be kept in confidence and shall be listed and maintained in suitable condition at the expense of Buyer and are to be considered the property of MAM held on consignment by Buyer and to be insured while in Buyer's possession. Such articles and all copies thereof from any source shall be returned to MAM at any time upon request and shall not be used for any third parties without the express permission of MAM.

(E) Any clerical errors are subject to correction and must be brought to the attention of MAM as soon as suspected.

PRICING:

(A) All pricing is reflected in USD as standard. Prices in MAM's advertising materials and website are subject to change without notice. All specifications are subject to update, upgrade, and/or revision without notice.

(B) All sales are made subject to all state, county, city/local and federal use, sales and excise taxes and tariffs, the amount of which Buyer agrees to pay. Any such tax may be billed to the Buyer as part of the selling price or may be separately billed at any time by MAM, if MAM is required by any taxing authority to collect or pay such tax.

(C) Unless otherwise specified and agreed to by MAM in writing, prices are F.O.B. factory, at point of manufacture. Buyer is responsible and bears all risk of loss during transport once the machine(s) and/or other purchase(s) (the "Goods") leaves manufacturer. Buyer is responsible for all costs of transportation, including rigging, from the point of manufacture and is responsible for insurance on the Goods during transit. Buyer shall pay any additional charges for special packaging requested by Buyer.

PAYMENT TERMS:

(A) As stated on proposal. Subject to credit approval at time of acceptance of order unless otherwise stated in quotation. Any unpaid balance thereafter shall be subject to a service charge of up to 1 1/2% per month or the maximum allowed by law, whichever is less. There shall be no extension or change in the time for payment due to delays in installation and/or delays in operation of the equipment caused by damage, warranty service or warranty replacement of parts.

(B) Buyer shall remain liable for all orders, notwithstanding any request by Buyer to direct an invoice to a third party.

FORCE MAJEURE:

A party shall notify the other party hereto in writing within twenty-four (24) hours of the knowledge of a Force Majeure event, and neither party shall be considered to be in default of an accepted purchase order to the extent that its failure or delay in performance is actually caused by a Force Majeure. "Force Majeure" means acts of God or nature, acts or

declarations of civil or military authority (including government-ordered closures or lockdowns), fires, floods, epidemic, war, or like occurrences that are beyond the control and without the fault of either party, including but not limited to strikes or other labor troubles of port workers; however, strikes or other labor troubles involving a party, or its representatives shall not constitute Force Majeure. A party shall use commercially reasonable efforts to mitigate the effect of such Force Majeure and relief granted to the party experiencing Force Majeure shall be limited to an extension of the time of performance. If MAM experiences a Force Majeure event for more than ninety (90) days, Buyer shall have the right to terminate the accepted purchase order and is entitled to a refund of all monies paid to MAM subject to costs approved in advance by Buyer in writing.

MODIFICATION OR CANCELLATION OF ORDER:

(A) Purchase orders accepted by MAM may be cancelled only with MAM consent, except as set forth above for certain cases involving Force Majeure. In the event of such consent, you shall pay to MAM promptly upon receipt of invoice from it:

(1) Contract price for all products which shall have been completed prior to receipt of notice of cancellation.

(2) All actual costs made or incurred by MAM in connection with the uncompleted portion of the order plus normal profit of the total contract price as partial liquidated damages.

(3) Cancellation charges if any of MAM on account of its purchasing commitments made under the order.

(B) All Goods paid by Buyer hereunder shall be delivered to Buyer in their "as-is" condition at the date of such cancellation at the sole cost and expense of Buyer.

(C) Any modification, addendums or change orders to add or remove items from the purchase order that are requested later than 10 business days after MAM's acceptance of the purchase order is subject to a change order fee, related to re-engineering time, rework, and/or restocking, in MAM's sole discretion.

SHIPPING AND DELIVERY SCHEDULE:

(A) Subject to confirmation by factory at time of MAM acceptance of purchase order.

(B) Subject to unavoidable delays caused by Force Majeure, as defined herein.

(C) The terms of delivery are set in good faith and are approximate. All delivery times are estimates only and do not constitute commitments. Manufacture and/or delivery periods will not commence until written acceptance by MAM of the purchase order and MAM's receipt of any required initial deposit.

(D) Delays in delivery do not release the Buyer from its obligation to accept the delivery and does not give entitlement to claims for compensation by MAM, unless agreed otherwise by written acknowledgment. Buyer hereby agrees not to hold MAM liable for any compensatory, punitive, special, incidental or consequential damages, or any similar damages, whether foreseeable or not, arising from or relating to any delay in delivery and/or installation, including but not limited to: loss of profits, revenue or business opportunity; loss by reason of shutdown of facilities; loss because of inability to operate any machinery or facility at full capacity.

(E) In addition to the rights and remedies conferred upon MAM by law, MAM will not be required to proceed with the performance of any accepted purchase order if Buyer is in default in the performance of any order or contract with MAM and, in cases of doubt as to Buyer's financial responsibility, shipments under an order may be suspended or sent sight draft with bill of lading attached by MAM.

(F) Buyer is solely responsible for preparing its facilities for delivery and installation of the Goods, including but not limited to having suitable electrical service available, sufficient clearances for installation and positioning, and having capable load-bearing infrastructure.

INDEMNIFICATION:

(A) Buyer agrees to save MAM harmless and indemnify MAM from and against any and all claims, judgments, and expenses of defense arising from or relating to: non-compliance with the applicable electric code; non-operation or faulty operation of any Goods; personal injury, loss or damages, whether direct, indirect, special, or consequential, in any degree resulting from, or contributed to by, inadequate or deficient or excessive or inappropriate electrical power supply for the operation of any Goods, wherever located, inadequate or incorrect instruction of operating personnel in

the use of any Goods, and improper or incompetent operation thereof including but not limited to overloading, abuse thereof, improper or inadequate maintenance thereof, use of any Goods for purposes or on materials for which the same is not intended according to its specifications or to generally accepted trade standards, or alteration or modification of any kind to such Goods unless previously and specifically approved in writing by MAM.

(B) As used herein, "expenses of defense" shall include all reasonable defense expenses and costs including (but not limited to) counsel fees incurred by MAM. "Improper or incompetent operation" as referred to above shall include, but not be limited to, failure to follow manufacturer instructions, generally accepted trade practices, warnings and recommendations and failure to comply with applicable federal, state and local laws and regulations. Said indemnification and exoneration against claims and judgments shall include, but not be limited to, those resulting from any legal theory of strict liability and from any theory of breach of warranty of any kind. In addition, as used above, the terms "improper or inadequate maintenance" shall include, but not be limited to, improper or inadequate installation performed by Buyer.

(C) Buyer agrees not to hold MAM liable for compensatory, punitive, special, incidental or consequential damages, or any similar damages, whether foreseeable or not, arising from or relating to any product malfunction or failure, including but not limited to: loss of profits, revenue or business opportunity; loss by reason of shutdown of facilities; loss because of inability to operate any machinery or facility at full capacity; damage to materials processed using the purchased products.

(D) These indemnification provisions shall supersede any inconsistent provision(s) in any document involving Buyer's purchase unless specifically agreed to in writing executed by MAM.

WARRANTY:

The Goods that are the subject of this sale have been manufactured by others. MAM makes no warranties, express or implied, in connection with this sale and, without limiting the generality of the foregoing, hereby expressly EXCLUDES any and all warranties of MERCHANTABILITY and warranties of fitness for a particular purpose. The warranties available to Buyer are those extended by the manufacturer to MAM to the extent that they are in force and effect, which warranties are on file at the offices of MAM and shall be assigned by MAM without recourse at Buyer's request. Performance and production data, including accuracy, capacity and capability of Goods are estimates only and not guarantees since they are dependent upon varying future production factors and conditions not within MAM's control. No agent, employee or representative of MAM has any authority to bind MAM to any affirmation, representation or warranty concerning the Goods that are the subject of this quotation beyond that specifically included in the written quotation. MAM shall have no obligation to install or provide improvements or changes in design adapted by the manufacturer or MAM for similar goods subsequent to acceptance of Buyer's order. In the event this quotation relates to used machinery, it is hereby agreed that MAM makes no warranties, express or implied in connection with the sale and, without limiting the generality of the foregoing, MAM hereby expressly EXCLUDES any and all warranties of MERCHANTABILITY and warranties of fitness for a particular purpose and Buyer takes such goods sold hereby in an "as-is", "where-is" condition.

LIMITATION OF LIABILITY

MAM does not warrant against and shall not be held responsible for any economic loss, loss of production or materials, property damage, product liability, personal injury, or any other claim by Buyer, its agents, employees, insurance carriers, subrogates, successors, assigns, or third parties arising out of the purchase and/or use of the Goods, except as expressly provided herein. In no event shall MAM be responsible for loss of profits, indirect, special, exemplary, or consequential damages, whether or not Buyer was aware of the possibility of such damages. MAM's liability to Buyer under this agreement shall be limited to the actual amount paid by Buyer for the Goods involved and shall in no event exceed MAM's applicable insurance coverage. These limitations will apply even if the limited remedy in this section fails of its essential purpose.

COMPLIANCE WITH LAWS AND SAFETY REGULATIONS:

(A) The contract resulting from the acceptance of an order pursuant to this quotation shall be governed by and construed according to the law of the Commonwealth of Pennsylvania without reference to its conflict of law provisions.

(B) MAM makes no guarantees or representations express or implied, that the Goods are in compliance with OSHA. MAM does not guarantee or confirm, express or implied, that the installation or the use of the Goods complies with OSHA.

(C) It is also Buyer's sole responsibility to comply with all requirements or recommendations of Buyer, OSHA, and any other local, state, federal, or international safety or other treaties, statutes, laws or regulations as they may pertain to the sale, transport, alteration and/or operation or use of the Goods.

(D) It is the Buyer's sole responsibility to assure the safe use, maintenance, and operation of the Goods and of all options, safety equipment, and additions.

(E) Buyer agrees that its agents and employees, when operating the Goods, will comply with all operating procedures set forth in manufacturer operator manuals and instructions, and Buyer further agrees not to remove or modify any safety device, warning sign, operator manual, manufacturer instructions, or work handling tools. Buyer shall notify MAM promptly of any accident resulting from use of the Goods and agrees to cooperate with MAM in investigating and determining the cause of any such accident.

CONFIDENTIAL AND PROPRIETARY INFORMATION:

(A) Except to the extent that information is clearly in the public domain, all information provided by Buyer to MAM during the performance of the purchase order and all improvements, modifications and derivations thereto shall be deemed to be the proprietary information of Buyer. MAM agrees to hold Buyer's proprietary information in confidence and to protect it from release.

(B) The appearance of MAM and/or manufacturer logos on products does not constitute a license for Buyer to use them for any other purpose. Buyer shall not publish or reproduce any physical or digital materials supplied by MAM and/or any manufacturer without prior written consent of the appropriate party.

(C) Buyer shall adhere to any manufacturer terms and conditions and governing law pertaining to protection of its trade secrets, copyrights, and other intellectual property (collectively, "IP"), and Buyer shall not disassemble or deconstruct any of the Goods in any manner designed to infringe on manufacturer's IP rights without manufacturer's express approval.

OTHER TERMS

(A) Any limitations on liability set forth herein as to MAM, as well as commitments to indemnify and save MAM harmless, apply likewise for the benefit of its owners, agents, officers, employees, representatives, affiliates (subsidiaries and entities with common ownership), and assigns.

(B) Buyer agrees that jurisdiction and venue for any disputes arising from the accepted purchase order shall be mandatorily brought in the state or federal courts located in Dauphin County, Pennsylvania.

(C) MAM AND BUYER WAIVE THE RIGHT TO A TRIAL BY JURY IN ANY LAWSUIT ARISING OUT OF OR RELATING TO AN ACCEPTED PURCHASE ORDER.

(D) These Terms shall be construed without aid of any canon, custom or rule of law requiring construction against the drafter.

(E) A purchase order may not be assigned without MAM's express written consent.

(F) For purchases to be financed by MAM, these Terms shall be in addition to the applicable financing and security agreement.

(G) If any term in these Terms is determined to be unenforceable, Buyer agrees that such provision shall be severed from the Terms and that Buyer shall remain bound by the remaining provisions.

(H) The prevailing party in any suit to enforce these Terms as part of an accepted purchase order shall be entitled to recover its reasonable attorney fees and legal costs related thereto.